

Mohd. Huwaida v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 22 September 2023 · 2023:AHC:184206-DB · WRIT - C No. 32451 of 2023 · **Writ disposed; Clause 4.4 application to be decided within three months.**

HEADNOTE

Writ seeking a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005 disposed of without any opinion on the claim. The Executive Engineer must decide the application in accordance with law, preferably within three months.

FACTUAL SUMMARY

Mohd. Huwaida filed Writ-C No. 32451 of 2023 in the Allahabad High Court. He complained that the Executive Engineer, Electricity Distribution Khand, Varanasi, respondent no. 3, had taken no decision on his application under Clause 4.4 of the U.P. Electricity Supply Code, 2005 for a new electricity connection on his premises. The State of U.P. and two others were impleaded. Counsel for the petitioner and for the respondents were heard on 22 September 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — decision on pending application

HOLDING

Without expressing any opinion on the validity of the claim, the Court disposed of the writ with liberty to bring the non-decision to the notice of the Executive Engineer. On that application, or where a Clause 4.4 application has already been filed, the Executive Engineer shall decide it in accordance with law under Clause 4.4 of the U.P. Electricity Supply Code, 2005, expeditiously and preferably within three months of filing. ¶ 1

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents

The Division Bench did not grant the connection. It directed the Executive Engineer to decide the Clause 4.4 new-connection application in accordance with law, preferably within three months, whether filed under the liberty given or already pending. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION UNDER CLAUSE 4.4

The Court expressed no opinion on the validity of the claim and left the decision to the Executive Engineer. ¶ 1